



ROMANIAN
UNITED FUND

**INTERNATIONAL GRANT AGREEMENT
BETWEEN
ROMANIAN UNITED FUND AND ASOCIATIA CODE FOR ROMANIA**

This International Grant Agreement ("Agreement"), effective as of October 1st, 2020, by and between Romanian United Fund, an Illinois not for profit corporation organized and operated for charitable purposes ("RUF") and Asociatia Code for Romania, a Romanian non-governmental association ("Grantee") (sometimes jointly referred to hereafter as "Parties").

WHEREAS RUF is organized and operated as a public charity under section 501(c)(3) of the Code. RUF's corporate purpose is to mobilize the network and charitable resources of the Romanian diaspora to fund, support, and promote impactful projects in and related to Romania that advance education, health, the protection of human and civil rights, the relief of poverty, social and economic development, arts, culture, the environment, and other charitable projects within the meaning of Section 501(c)(3).

WHEREAS Asociatia Code for Romania is a Romanian non-governmental association organized and operated to provide a functional and sustainable civic technology infrastructure to facilitate and improve the building of digital solutions to societal issues. Code for Romania is an independent organization affiliated with Code for All, the international network of civic technology organizations around the world. Asociatia Code for Romania is located in Bucharest, Romania at Piața Alba Iulia nr. 7, bloc I6, etaj 1, ap. 6, sect. 3, and recognized by the Government of Romania as registered tax-exempt, non-governmental organization.

WHEREAS Grantee has established to RUF that it operates exclusively for charitable purposes and is duly qualified under both the laws of the United States and Romania to expend and distribute charitable assets to further RUF's programs and purposes, as stated above, and to prevent such assets from inuring to the benefit of any private person or entity. Grantee has executed a pre-grant application that has been approved by RUF ("Application"). A copy of the completed Application is attached hereto as Addendum A to this Agreement and all representations made therein are hereby incorporated by this reference into this Agreement.

WHEREAS RUF seeks to comply with all US federal income tax laws governing overseas charitable grant-making operations as a qualified IRC sec 501(c)(3) public charity, the USA PATRIOT Act of 2001, P.L. 107-56, 115 Stat. 272, and additional antiterrorism guidelines promulgated from time to time by the U.S. Treasury (Office of Foreign Asset Controls) or the Department of Homeland Security. For compliance with US law, RUF is relying on this Agreement, which obligates Grantee by contract to hold the grant funds in a restricted account and to comply with US federal tax laws governing the use of these funds for specific pre-approved qualified projects.

NOW, THEREFORE, in consideration of the foregoing and mutual covenants contained herein, the parties agree as follows:

ARTICLE I. GENERAL PROVISIONS

1.1 Recitals.

The recitals are by this reference incorporated into, and made part of, this Agreement as an expression of the facts and circumstances leading to this Agreement and the intent of the parties.



1.2 Term.

The term of this Agreement ("Term") shall commence at the Effective Date and continue until terminated in accordance with Section 5.2 of this Agreement.

ARTICLE II. GRANT PROJECTS

2.1 Scope of Grant Projects.

During the term of this Agreement, RUF may, in its sole discretion, grant funds to Grantee. The funds granted by RUF, and income earned thereon, may be expended by Grantee only for projects which are pre-approved by RUF and which are in compliance with the terms and provisions of this Agreement. The projects, which shall be more specifically described on a project-by-project basis and in accordance with an approved budget and expenditure timeline as set forth herein, will generally include the following:

- a. Specific details of needs, execution plans and expected benefits, targeted groups and areas, time length of projects, etc.
- b. Developing mutually-agreeable operational plans to raise financial and material resources to sustain current or future Code for Romania programs
- c. Raising additional capital to fund other projects that may be from time to time determined by the parties to be in furtherance of RUF's exempt purposes (hereafter referred to collectively as "Grant Projects").

2.2 Limitations on Use of Grant Funds under this Agreement.

It is the intent of both parties to be excellent stewards of the financial and material resources provided to accomplish the charitable projects set forth in this Agreement. Grantee has been informed of the limitations on the use of grant funds provided by RUF under US laws and hereby agrees to the following:

- a. Grantee shall not make any distributions with the grant funds that are inconsistent with, or outside the scope of, the pre-approved Grant Projects. Grantee agrees that no grant funds shall be used to inure to the benefit of Grantee's directors, officers, employees, or other private persons except where such payments constitute reasonable compensation for services rendered or goods provided in furtherance of the Grant Projects under this Agreement.
- b. Grantee agrees to implement precautions prescribed from time to time by RUF to ensure that all distributions of grants funds comply with the USA PATRIOT Act of 2001, P.L. 107-56, 115 Stat. 272 (or a corresponding provision of any future federal or state law concerning anti-terrorism). This includes, but is not limited to, performing regular reviews of terrorist watch lists compiled by the United States Government and providing certified reports of the same to RUF.
- c. Grantee agrees that no grant funds or other resources provided by RUF shall be used toward the carrying on of propaganda, or otherwise attempting to influence legislation, and that Grantee shall not participate in, or intervene in (including the publishing or distribution of statements) any political campaign on behalf of (or in opposition to) any candidate for public office during the term of this Agreement.



2.3 Use of Sub-Grantees.

Grantee may under this Agreement regrant funds to one or more local charitable organizations ("Sub-Grantees"), pre-approved in writing by RUF, in order to accomplish the Grant Project objectives in accordance with the mission of RUF and applicable law. When providing grant funds to Sub-Grantees, Grantee agrees to:

- a. Assess the capacity of the Sub-Grantee to achieve the objective of the Grant Project and to properly account for the funds provided;
- b. Enter into a written agreement with the Sub-Grantee stipulating the obligations of the Sub-Grantee to Grantee, including, but not limited to, a requirement that the Sub-Grantee use all Grant Funds solely for the purposes of the Grant Project;
- c. Maintain a system to supervise the performance of the Sub-Grantee and ensure punctual reporting from the Sub-Grantee in compliance with this Agreement; and
- d. Acknowledge and agree that providing grant funds to Sub-Grantees does not relieve Grantee of its obligations and liabilities under this Agreement.

ARTICLE III. BUDGET AND MAINTENANCE OF ACCOUNTS

3.1 Fiscal Year.

The fiscal year for this Agreement shall be from January 1st to December 31st of each year ("Fiscal Year").

3.2 Budget.

For every fiscal year during the term of this Agreement, Grantee shall submit a proposed budget setting out the estimated costs and the funding required for all Grant Projects ("Proposed Budget"). The Proposed Budget shall be submitted to RUF for consideration and approval at least sixty (60) days prior to the start of Fiscal Year. If the Proposed Budget meets with the approval of RUF, with or without change, the budget or amended budget, as the case may be, shall become the Approved Budget and RUF will try to secure the necessary funding. To the extent that there is a surplus from any Grant Projects, the surplus shall be retained for future Grant Projects as directed by RUF. Should additional funds be required to accomplish the grant projects, Grantee shall provide a written request to RUF documenting the needs and purposes for such additional funds.

3.3 Grant Funds.

RUF encourages, whenever feasible, the deposit of grant funds in an interest-bearing account. United States law requires that accounting records, as well as copies of reports submitted to RUF (set forth below), be kept by Grantee for at least four (4) years after completion of the use of the grant funds and made available to RUF's examination upon request.



ARTICLE IV. REPORTING AND ADDITIONAL OVERSIGHT

4.1 Reporting.

Within sixty (60) days after the end of the Fiscal Year in which the Grantee receives or expends any portion of RUF grant funds, or within sixty (60) days after the completion of any sponsored project with a lifespan of less than a year (including income, if any, from such funds) during the Term of this Agreement, the Grantee shall provide a written report signed by an appropriate officer of the Grantee to RUF.

Each written report should contain a narrative description, the systematic breakdown of expenses (spreadsheet) with attached invoices and the corresponding receipts for the Grant Projects for the period covered by the report and photos documenting the advance of the projects (if applicable). The narrative should contain a detailed description of what was accomplished by the grant funds, including a description of the progress made toward achieving the goals of the grant(s) and an assurance that the activities under the Grant Projects have been conducted in conformity with the terms of the grant(s). The financial report should contain the transactions ledgers with all the expenditures of RUF grant funds and any income earned thereon, with a total shown in lei and the equivalent in US dollars, and it should explain all types of expenditures in such details as to make it obvious to anyone, who without specific financial education will have a full understanding of what the grant money was spent on. The financial statement should include only RUF funds received and expended for the period covered by the report. It is assumed that the financial statement will be prepared from books and records maintained on a fund accounting (cash) basis. Only expenditures made in furtherance of the grant purposes should be charged against the grant, and records should be maintained of such expenditures adequate to enable the use of such funds to be checked readily.

4.2 Additional Reporting and Commitment to Full-Disclosure.

In addition to the annual reporting requirements set forth in Section 4.1, RUF reserves the right to request more frequent reporting and the Grantee agrees to comply with those request(s) and to provide full disclosure and transparency regarding all financial, operational, legal, security, and moral matters related to RUF's funding under this Agreement. RUF and its designees shall maintain the right to all information regarding any aspect of the Grantee's activities in any way related, directly or indirectly, to the joint activities governed by this Agreement.

4.3 Failure to Timely Report.

If written reports are not submitted to RUF on a timely basis, United States law requires that RUF withhold further payments, if any, to Grantee and any affiliate organization under this grant or under any other RUF grant and prohibits RUF from awarding any new grants to Grantee or any affiliate organization.

4.4 Additional Oversight.

RUF may monitor and conduct an evaluation of operations of the Grantee under this Agreement, which may include a visit from RUF personnel to observe the Grantee's program, discuss the program with the Grantee's personnel, and review financial and other records and materials connected with the Grant Projects funded by RUF under this Agreement.



ARTICLE V. FUNDING DISCONTINUANCE AND TERMINATION

5.1 Funding Discontinuance.

RUF reserves the right, in its sole discretion, to discontinue funding if it is not satisfied with the progress of the grant or the content of any written report required herein. Further, Grantee acknowledges that payments under this Agreement are conditioned upon receipt and approval of a proposed budget prepared by Grantee.

5.2 Termination.

Either party may terminate this Agreement by giving written notice of such withdrawal to the non-terminating party in accordance with the notice provisions set forth herein. Unless the parties otherwise mutually agree, the termination shall take effect upon the later of: (i) thirty (30) days from the date of providing such notice; or (ii) the completion of all projects and reporting for which RUF has provided funding under this Agreement.

ARTICLE VI. MISCELLANEOUS

6.1 Relationship of the Parties.

Nothing in this Agreement shall constitute the naming of either party as an agent or legal representative of the other for any purpose whatsoever except as specifically and to the extent set forth herein. This Agreement shall not be deemed to create any relationship of agency, partnership, or joint venture between the parties hereto, and neither party shall make such representations to anyone.

6.2 Notice.

Notice made pursuant to this Agreement shall be in writing and delivered by mail or email to the following:

In the case of: Asociatia Code for Romania
Bogdan Ivanel, Managing Director
Phone: +40 740-044-987
Email: bogdan.ivanel@code4.ro

In the case of: Romanian United Fund
Daniela Kammrath
Phone: +1 202-798-8971
Email: daniela@romanianunitedway.org

6.3 Governing Law.

This Agreement shall be construed in accordance with and governed by the laws of the State of Illinois and the United States of America.

6.4 Assignment.

Grantee may not assign its rights and obligations under this Agreement without express written approval of RUF. This Agreement will bind and benefit any permitted successors and assigns.



COUNTERPARTS AND ELECTRONIC SIGNATURES

6.5 Acknowledgment.

Each party will acknowledge, by using the name or abbreviation and by displaying the logo, the contributions of the other participant Party in this Agreement, as a "Community Partner", "Grantee", "Sponsor" or "Grantor", in all Grant Projects related announcements and in all public presentations, including social media and individually owned websites. On all social media platforms, all announcements should include the relevant hashtags.

6.6 Entire Agreement.

This Agreement constitutes the entire Agreement between the parties hereto pertaining to the subject matter hereof and supersedes all prior and contemporaneous agreements, understandings, negotiations and discussions between the parties.

6.7 Modification.

This Agreement may not be modified or amended except by the written agreement of the parties.

6.8 Invalid Provision.

If any term or provision of this Agreement is invalid or unenforceable, the remainder of this Agreement shall not be affected, and each term and provision of this Agreement shall be valid and be enforced to the fullest extent permitted by law.

6.9 Headings.

Headings in this Agreement are for convenience only and shall not be used to interpret or construe its provisions.

6.10 Counterparts.

This Agreement may be executed in counterparts, each of which shall be deemed an original but all of which together shall constitute one and the same instrument.

IN WITNESS WHEREOF, the following officer of each party represents that he or she is duly authorized to enter into this Agreement on behalf of his or her respective party:

FOR Romanian United Fund

Daniela Kammrath
Executive Director

Signature:

Date:

10.26.2020

FOR Asociatia Code for Romania

Bogdan Ivanel
Managing Director

Signature:

Date:

OCTOBER 29 2020



ROMANIAN
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Addendum A. Pre-Grant Inquiry



Addendum B. Grant Project Summary & Budget

Grant Project Summary: BrainGain (Civic Labs Diaspora) aims to build an online, interdisciplinary community of Romanian experts (based in Romania or abroad), with the aim of fostering collaborative initiatives. The platform offers experts a framework to collaborate, as well communicate know-how to professional and lay audiences. Platform functionalities allow experts to aggregate around topics of interest, discuss and debate them in groups, as well as identify strategies to address them. Experts can also use platform tools to deliver webinars, disseminate science talks and podcasts, contribute to a collaborative blog as well as collaborate with journalists on media outputs. Journalists can enter collaboration requests and identify expert collaborators. The general public can access trusted information and educational opportunities.

Grant Project Lead and Reporting. Asociatia Code for Romania will be responsible for auditing all expenditures and providing the corresponding reporting back to RUF according to this Agreement.

Grant Budget:

Cost Category	Unit No.	Cost/Unit (USD)	Total Cost/Unit(USD)
Technical Development			
Project Management	1	1170	1170
UX Research	1	2925	2925
UX/UI Design	1	1521	1521
Software Licensing and Subscription	4	58.5	235
Total(USD)			5850

Project Activities : (1) in-depth desk research on existing papers, reports and other relevant data available. (2) online interviews with several experts in the field of migration, researchers, members of each of the target audiences of the platform etc (3) problem validation (4) design thinking and incubation sessions on app functionalities (4) user flow and information architecture design (5) flow validation (6) low-fidelity wireframing (7) testing (8) high-fidelity prototyping and documentation (9) testing (10) interactive prototype adjustment (11) budget and final product overview file.

Grant Acknowledgment: Asociatia Code for Romania agrees to recognize RUF at minimum following the guidelines described in Article 6.5 Acknowledgement in this Agreement anywhere the project is advertised, including social media or websites.

IN WITNESS WHEREOF, the following officer of each party represents that he or she is duly authorized to enter into this Agreement on behalf of his or her respective party:

FOR Romanian United Fund

Daniela Kammrath
Executive Director

Daniela Kammrath

Signature: _____
Date: 10.26.2020

FOR Asociatia Code for Romania

Bogdan Ivanel
Managing Director

Bogdan Ivanel

Signature: _____
Date: OCTOBER 29 2020